LEA MANYUMWA

Versus

NAISON MAPFUMO

And

MESSENGER OF COURT

And

WEBSTER MUSHANDU

HIGH COURT OF ZIMBABWE
DUBE-BANDA J & ZISENGWE J
MASVINGO, 12 November 2025
Written reasons provided on 17 March 2025

S T. Mutema; for the appellant

First respondent; in person

No appearance for the second & third respondents

CIVIL APPEAL

ZISENGWE J: On 26 November 2025 we delivered an *ex-tempore* judgment dismissing the appeal against the decision of magistrates court sitting at Masvingo (the court *a quo*) granting the first respondent's interpleader claim in respect of a certain motor vehicle. We now provide reasons for that decision at the behest of the appellant who has since made a written request for the same.

The brief background to the appeal is that the appellant successfully sued the third respondent Webster Mushandu for his ejectment from certain residential premises in the Rhodene

suburb of Masvingo. She also obtained judgment for the payment of arrear rentals and certain sums of money in outstanding municipal bills.

Following her success, the appellant instructed the Messenger of court (the second respondent herein) to attach in execution, property belonging to the judgment debtor, i.e., the third respondent. It was then that a UD truck (the motor vehicle) which forms the subject matter of this appeal was attached, purportedly in execution of the judgment debt. At the time of such attachment in execution, the truck was parked at the residence of the third respondent. These are the same premises where the third respondent was renting out the appellant's house. It is therefore safe to say that the motor vehicle was in the third respondent's possession.

The first respondent swiftly approached the second respondent on affidavit asserting that as a matter of fact the attached motor vehicle belonged to him and not the third respondent. Pursuant to that, the second respondent in turn sued out interpleader summons calling upon the all parties concerned to come forward for a determination as to whether the motor vehicle was executable or not.

In his affidavit triggering the interpleader proceedings, the first respondent had averred he purchased the motor vehicle in question in 2010. He indicated that he had taken it to the third respondent's place of residence for an "engine pump adjustment" in 2024 and that since the third defendant had left the premises he could not access it (i.e. the motor vehicle). He further stated that he could produce the agreement of sale which was in the form of an affidavit and the registration book thereof.

He attached an affidavit by one Dawn Chikomba stating that he had handed the registration book of his Daf truck to first respondent after a three months' payment plan. He also attached a registration book.

After receiving arguments, the court *a quo* granted the interpleader claim and declared the motor vehicle not executable.

In its judgment, the court *a quo* set out the applicable law pointing out as it did that where the property which forms the subject matter of the interpleader proceedings is in the possession of the judgment debtor at the time of attachment, the claimant bears the onus of proving ownership. Reliance was placed *inter alia* on case of sheriff of the *Sheriff of High Court* v *Tiritose Consulting (Pvt) Ltd* HH-347-15. It then proceeded to point out that the claimant (the first respondent in this

appeal) had tendered an affidavit authored by the registered owner of his motor vehicle. The said affidavit disclosed the purchase price of the motor vehicle, which purchase price was paid in instalments.

Further, it pointed out that the claimant had produced the motor vehicle's registration book and as far as the court a quo was concerned, the two documents constituted evidence of ownership. The court a quo further observed that the conclusion of agreement of sale by way of affidavit is a common practice particularly amongst what it termed "lay persons".

Of particular importance, the court *a quo* observed in its judgment that the fact that the sale of the motor vehicle was concluded in 2010 and the affidavit executed some eleven years later was of no moment. Critically, the court *a quo* discounted the possibility of collusion between judgment debtor and claimant observing as it did that the affidavit in question was signed in 2021 some four years prior to the litigation which birthed the judgment debt.

It found that the judgment creditor had failed to discredit the claimant's version that the judgment debtor was merely a mechanic at whose residence the motor vehicle had been left for repairs.

Ultimately, therefore, the court *a quo* stated that it was satisfied that the first respondent (as claimant then) had provided sufficient proof of ownership of the motor vehicle and granted the interpleader claim and declared the motor vehicle not executable.

Aggrieved by that outcome the appellant mounted the current appeal. Her grounds of appeal were framed in the following terms:

Grounds of appeal:

1. The court *a quo* grossly misdirected itself in fact resulting in an error of law in making a finding that the claimant has proved ownership of the vehicle despite claimant's failure to produce clear and satisfactory evidence to prove such ownership.
2. The court *a quo* erred at law in making a determination that an affidavit of delivery of a motor vehicle was sufficient evidence to substantiate a registration book (sic) which was not in the name of the claimant as proof of ownership.
3. The court *a quo* erred in departing from superior and binding precedence (sic) that there is a presumption of judgment debtors' ownership of goods attached in execution at his residential premises unless rebutted by actual proof of ownership by the claimant.

She therefore sought an order upholding the appeal and declaring the property in question executable.

Arguments before this court

The appellant filed heads of argument and basically reiterated the arguments presented in the proceedings *a quo*. The main thrust of her arguments were that the first respondent had not established what could be termed "clear and satisfactory evidence" to prove ownership of the motor vehicle. More particularly it was argued that the reliance on the registration book as proof of ownership was misplaced in light of the fact that case law abounds for the proposition that a registration book is not proof of ownership of a motor vehicle. Heavy reliance was placed on *Air Zimbabwe (Pvt) Ltd & Anor* v *Nhuta & Ors* 2014 (2) ZLR 333 (S) & *Raziya Kazi* v *The Sheriff of Zimbabwe* SC-26-22.

She criticized the court *a quo* for placing too much reliance on the affidavit of delivery not an affidavit of the sale of the motor vehicle. According to her, the affidavit neither mentioned the sale of the truck nor who was paying and that therefore it was not sufficient to sustain a claim of ownership.

The first respondent was a self-actor. He simply chose to stand by the submissions he made in the proceedings *a quo*.

With movables, the test in interpleader proceedings is that possession thereof creates a presumption of ownership; *Phillips N.O* v *National Foods Ltd & Anor* 1996 (2) ZLR 532 (H); *Zandberg* v *Van Zyl* 1910 AD 258 at 272 & *Muzanenhamo* v *Fishtown Investments (Pvt) Ltd & Ors* SC-8-2017

The *onus* is therefore the claimant to prove ownership of the movables notwithstanding their possession by the judgment debtor. In this regard the claimant must place before the court clear satisfactory evidence that the movable so attached belongs to him or her; *Bruce N.O.* v *Josiah Parkes & Sons (Rhodesia) Ltd & Anor* 1971 (1) RLR 154; *The Sheriff of Zimbabwe* v *Superior Holdings & Anor* HH-70-18; *Deputy Sheriff Marondera* v *Traverse Investments & Anor* HH-11-2003 & *Muzanenhamo* v *Fishtown Investments (Pvt) Ltd & Ors* (*supra*)

The standard of proof required is no more than that demanded in civil proceedings in general, namely on a balance of probabilities, see *Adams Farm (Pvt) Ltd* v *The Deputy Sheriff of Marondera & Ors* SC-97-2 & *The Sheriff of Zimbabwe* v *John Keith Henman & Anor* HH-130-18

Motor vehicles tend to present somewhat of a conundrum in that unlike most movables they come with the obligatory registration book. In the minds of most vehicle owners, the registration book is the primary means by which they can prove ownership of their motor vehicles. However, the position is now settled that such registration book does not necessarily constitute proof of ownership; *The Sheriff of Zimbabwe* v *Paul Masango & 2 Ors* HH-448-19; *Air Zimbabwe (Pvt) Ltd; Anor* v *Stephen Nhuta & Ors* SC-65-14 & *The Sheriff for Zimbabwe & Anor v Local Authorities Pension Fund* HH-586-16. This is for a variety of reasons not least the fluidity with which motor vehicles often change hands without the corresponding changes being effected in the registration book. It is not uncommon for a motor vehicle to be sold to three of four persons one after the other with the registration book still reflecting the name of the first owner.

In *casu,* the claimant relied on his own affidavit and that of the person who sold him the motor vehicle to him as well as the registration book of the person from which he purportedly purchased the motor vehicle.

Much ado was made by appellant's counsel about the registration book of the motor vehicle in this particular case not constituting proof of ownership. To us this argument is a *non-sequitur* given that the claimant did not rely on the registration book as proof his *own* ownership of the motor vehicle but as part of proof of his acquisition of the motor vehicle.

Implicitly, therefore, the first respondent confirmed the very position that a registration book is not necessarily proof ownership. He relied on a registration book in *someone else's* name to prove his *own* ownership of the motor vehicle.

In any event, contrary to the assertions by appellant's counsel, the relevant case law authorities do not go so far as suggesting that a registration book is *irrelevant* in interpleader proceedings in which a motor vehicle is the subject matter of the claim. It remains part of the evidence at the court's disposal in its assessment of the claimant's assertions. What the decisions are apt to convey, however, is that standing alone the registration book might not be sufficient to prove ownership. However, when combined with other relevant evidence, proof of ownership on a balance of probabilities may be attained.

In *The Sheriff of Zimbabwe* v *Paul Masango & Ors* HH-448-19 DUBE J (as she then was) had this to say at pages 3-4:

> "There is a misapprehension that a vehicle registration book suffices as proof of ownership of a vehicle. A litigant seeking *to show that an attached vehicle belongs to him must produce more than just the registration book of the vehicle if he hopes to convince the court that he owns the vehicle attached. Satisfactory details regarding how he acquired the vehicle, when and from whom the bought the vehicle need to be furnished in order to rebut allegations of collusion with the judgement debtor."* (my italicisation for emphasis)

Similarly, in *The Sheriff of Zimbabwe* v *John Keith Henman & Anor* (*supra*) TAGU J aptly remarked as follows:

> "In an application of this nature it is trite that a claimant must at law produce proof that the property attached in execution indeed does not belong to the judgment Debtor but to himself. Proof which is envisaged at law are things like agreements of sale or receipts for the purchase of the said property. …. *Even if it is proved that the vehicles are registered in the names of the wife and daughter at law a registration book is not proof of ownership but that the vehicle were registered in the claimant's names and coupled with some receipts or agreement of sale or some other document to that effect, one might have given him the benefit of the doubt."* (my italicisation for emphasis)

Finally, in *Deputy Sheriff, Marondera* v *Traverse Investments (Pvt) Ltd & Anor* (*supra*) the court was quite prepared to accept the registration book in the peculiar circumstances of that case to be *prima facie* proof of ownership and which in the absence of evidence to the contrary from the judgment creditor, as being adequate proof of ownership.

The registration book therefore should not be relegated to the level of irrelevance, suffice however to reiterate that in *casu* it was not produced in the court *a quo* to prove that it was registered in the claimant's name and that therefore it belonged to him. It was simply produced as part and parcel of the history of the acquisition of the motor vehicle.

Separately, the appellant also attacked the validity of the affidavit by the person who sold the motor vehicle to the first respondent it being suggested that such affidavit was not sufficient proof of ownership.

The court *a quo* did not in the least suggest that the affidavit of the seller was on its own sufficient proof of ownership of the motor vehicle. What we gathered from a reading of the court

a quo's judgment was that it took all the discreet pieces of evidence collectively and concluded that the first respondent, then as claimant, had placed sufficient proof of its ownership.

Finally, counsel took issue with the validity of the affidavit deposed to by the seller of the motor vehicle in that it lacked certain attributes of a valid agreement of sale.

In our respectful view, the affidavit constituted neither the agreement of sale itself nor an affidavit deposed pursuant to the institution of the interpleader proceedings. It was merely one of the documents in the first respondent's possession which showed part of the entire transaction relating to transfer of ownership of that motor vehicle.

Ultimately we did not find justification in interfering with the court *a quo's* discretion.

Accordingly, we dismissed the appeal with no order as to costs.

ZISENGWE J……..

DUBE-BANDA J agreed……

Stansilous & Associates; appellants' legal practitioners